Residential Tenancy Agreement

Date: <<TODAY>>

Landlord: <<LegalEntity_Name>>

Tenant: <<ALLTENANTLESSEE>>
Address: <<PRADDR1>> <<PRADDR2>> <<PRZIP>> <<PRCITY>>

Note for Tenants

1. The Residential Tenancies Acts 2004 to 2025 applies to this Agreement.

2. Fixed Term Tenancy

3. The rent payable may change subject to the Residential Tenancies Acts 2004 to 2025

4. If you are unsure as to your obligations under this Agreement, then you are advised to take legal advice before signing.

1. Parties and Principal Terms

DATE: <<TODAY>>

THIS AGREEMENT is made on the date specified above **BETWEEN** the Landlord and the Tenant(s) and includes all the covenants and conditions together with the Schedules attached hereto.

(a) LANDLORD:

<<LEGALENTITY_NAME>>

70 Sir John Rogersons Quay, Dublin 2, Ireland.

(b) LANDLORDS AGENT: Hali

Hali Operations Limited,
ICONIC OFFICES – OFFICE 302,
3-8 HUME STREET,
DUBLIN 2,
D02 C624, IRELAND

PSRA Licence No. 004315

Ph. 01-2239670

Email. Hello@Hali.ie

(c) TENANT(s): <<ALLTENANTLESSEE>>

Tenant Principal Contact Details: <<PREMAIL>>

(d) THE DWELLING: **<<Unit_AddrS>>** including the fixtures and fittings at the property together with any furniture, carpets, curtains and other effects listed in the inventory (where applicable) in the Second Schedule.

(e) THE TERM: **<<PRLEASETERM>>** months fixed term lease
From the Tenancy Commencement Date
Expiring **<<PRLEASETO>>**

- **12** months fixed term lease

<<PRLEASEFROM>> or the first available date after **<<PRLEASEFROM>>** that the Dwelling is available such date to be notified to the Tenant 30 days in advance by the Landlord

(f) TENANCY COMMENCEMENT DATE: **<<PRLEASEFROM>>**

(g) SECURITY DEPOSIT: **€ <<SECDEP>>**

(h) RENT: **€ <<PRQUOTERENT>>**

(i) PARKING CHARGE: € <<PARKINGCHARGE>>

(j) PET CHARGE: € <<PETRENT>>

(k) RPZ STATUS: **This property is in a Rent Pressure Zone (RPZ)**

Any increase in the rent last set shall be calculated by—(a) calculating as a percentage any difference between the Harmonised Index of Consumer Prices ("HICP") value that applied on the date the rent was last set and the HICP value that applies on the new date, and
(b) applying the amount of the percentage calculated under paragraph (a) to the rent last set.
(c) Any rent increase in a RPZ is prohibited from exceeding general inflation (as recorded by the HICP inflation rate) and cannot increase by more than 2% per annum pro rata, where HICP inflation is higher.

(l) PAYMENT METHOD: The first month's rent (and, additionally, the parking and pet charge) in advance by payment directly through the Landlord's agent's website at **www.hali.ie** **,** and thereafter in advance through the landlords agents website of **€ <<TOTAL_RENT_AND_CHARGES_LA>>** (or at the Landlord's option by direct debit) from a single designated account of the Tenant(s) on or before **the 30th day of each month**, direct: www.hali.ie.

2. Defined Terms

In this Agreement, unless the context otherwise requires, the following expressions shall have the following meanings:

2.1. **ACTS** means the Residential Tenancies Acts 2004 - 2021.

2.2. **A RIGHT** given to the Landlord to enter the Dwelling extends to any person(s) authorised in writing, acting on the Landlord's behalf, and includes the right to bring workmen and appliances into the Dwelling.

2.3. **ALTER OR IMPROVE** in relation to the Dwelling, includes:

(a) altering a locking system on a door giving entry to the Dwelling; and

(b) making an addition to, or alteration of, a building or structure (including any building or structure subsidiary or ancillary to the Dwelling).

2.4. **AUTHORISED AGENT** is the person listed herein who is the person authorised by the Landlord to act on the Landlord's behalf in relation to the tenancy. The contact details of the Agent are as set out herein. It shall also include such other person as during the terms of the tenancy is identified by the Landlord as acting on his or her behalf in writing to the Tenant.

2.5. **AUTHORITY** in writing given to any person(s) acting on the Landlord's behalf to enter the Dwelling after giving notice extends, in case of emergency only, to entry after giving less notice than specified or without giving any notice.

2.6. **BEHAVE IN A WAY THAT IS ANTI-SOCIAL** means engage in behaviour of a kind specified in section 17(1) of the 2004 Act (as amended).

2.7. **DWELLING** means dwelling as defined by Section 4(1) of the 2004 Act (as amended) and where relevant includes any out office, yard, garden or other land appurtenant to the Dwelling or usually enjoyed with it to include, for the avoidance of doubt, balconies and common areas.

2.8. **FURNITURE AND APPLIANCES** means the furniture and appliances listed in the Second Schedule including contents as listed.

2.9. **PET POLICY AFREEMENT** means, if applicable, the agreement entered into between the Landlord and the Tenant contemporaneous to this Agreement in respect of the Landlord's consent to permit animals in the Dwelling.

2.10. **PUBLIC AUTHORITY** includes a local authority.

2.11. **PUBLIC AUTHORITY CHARGES** includes rates, water rates, waste charges and any other charges introduced by the relevant local authority in relation to levies on the Dwelling.

2.12. **RENT** includes any payments or charges for which the Tenant is liable under the terms of this Agreement (with the exception of the Car Parking Charge, the Pet Charge and the Wifi Costs (all as defined below)).

2.13. **RENT PAYMENT DATE** shall be the date on which the rent is payable commencing on the date set out in Section 1 herein and thereafter the rent to be paid monthly in advance.

2.14. **THE LANDLORD** means the person for the time being entitled to receive (otherwise than as agent for another person) the rent paid in respect of a dwelling by the tenant, including, where the context so admits, a person who has ceased to be so entitled by reason of the termination of the tenancy.

2.15. **THE TENANT** means the person for the time being entitled to the occupation of the dwelling under this tenancy agreement as defined by section 5 of the 2004 Act (as amended).

2.16. **UTILITIES** includes, but is not limited to, electricity, heating, cable television, refuse, telephone and any ISDN line or other connection for data in the dwelling.

2.17. **PROPER STATE OF STRUCTURAL REPAIR** means sound, internally and externally, with roof, roofing tiles and slates, window, floors, ceilings, walls, stairs, doors, skirting boards, fascia, tiles on the floor, ceiling and wall, gutters, downpipes, fittings, furnishings, gardens and common areas maintained in good condition and repair and not defective due to dampness or otherwise.

3. Tenant Covenants

3.1. The Tenant pays the Security Deposit for their performance of the Tenant's obligations and to pay and compensate the Landlord for any breach of those obligations. It is agreed that this sum shall not be transferable by the Tenant in any way, and at any time, against payment of the rent and that no Interest shall be payable on this Security Deposit. The balance of any Security Deposit paid by the Tenant is to be paid to the Tenant in accordance with the Acts.

3.2. To pay the Rent on the Rent Payment Date without deduction, counterclaim or set off (except otherwise permitted in law) to the Landlord, or their Authorised Agent, subject to any deduction of tax as required by law at the time and in the manner stated in this agreement. The first payment being made before the Tenancy Commencement Date.

3.3. To pay promptly any Public Authority Charges and costs for any Utilities or other services used in respect of the Dwelling which are the responsibility of the Tenant and at or before the end of this Agreement to give the Landlord all account numbers to enable the transfer of accounts and to pay the total cost of any re-connection fee relating to the supply of any Utilities if same is disconnected or the operating company changed.

3.4. Not to damage or injure the Dwelling or the Landlord's Furniture and Appliances or make any alteration or addition to it. Any redecoration is to be made only with the prior written consent of the Landlord or his Authorised Agent.

3.5. To keep the Dwelling properly secure and notify the Landlord in writing in advance if the Tenant is to allow the Dwelling to be vacant for more than 30 consecutive days.

3.6. To take good care of the Dwelling and the Furniture and Appliances and to keep them all clean and tidy and not to cause or allow anyone else to cause any damage to them and not to allow anything to obstruct the sewers or drains, and to keep the Dwelling at all times well and sufficiently aired and warmed during the Tenancy and to take all reasonable precautions to prevent damage by frost.

3.7. It is advisable that as a minimum shower heads should be cleaned and disinfected every six months.

3.8. The tenant agrees to clean the clothes dryer condensers after 30 uses which will reduce overall energy costs. When you first move into the property, the Hali team will have flushed all available outlets. Flush all outlets when you occupy the apartment for 3 minutes each to refresh the system. If you are on holiday or leave your property empty for more than one week you need to flush (turning your tap and shower on) all outlets for several minutes upon your return. If you have any outlets that you do not use every week (such as en-suite or utility) these need to be flushed weekly. Please note that your cold-water system should be (<20 C) and hot water system should achieve 50 C. If your system is faulty or requires maintenance this needs to be attended to without delay. Inform the landlord or landlord's authorised agent if the hot water is not heating property or there are any other problems with the system so the appropriate action can be taken. Do not adjust the temperature setting of the heat pump. The Mechanical Ventilation Heat Recovery (MVHR) system has been balanced, commissioned and controls set by the landlord. The tenant agrees to Inform the landlord or landlord's authorised agent if the MVHR is not operating or if there are any other problems with the system so the appropriate action can be taken. The tenant agrees not to adjust the ceiling air supply and exhaust valves or any setting on the MVHR within the property.

3.9. If the obligations set out in Clauses 3.7 are not complied with, to take such steps as the Landlord may reasonably require to restore the Dwelling, Furniture and Appliances to the condition mentioned in Clause 3.7 or to defray any costs incurred by the Landlord in his or her taking such steps as are reasonable for that purpose.

3.10. Not to do any act that would cause a deterioration in the condition the Dwelling, the Furniture or the Appliances were in, at the commencement of the Tenancy or in the case of Furniture or Appliances having been replaced, at the time when that replacement takes place, but there shall be disregarded, in determining whether this obligation has been complied with at a particular time, any deterioration in that condition owing to normal wear and tear, that is to say wear and tear that is normal having regard to:

(a) the time that has elapsed from the commencement of the Tenancy, the extent of occupation of the Dwelling the Landlord must have reasonably foreseen would occur since that commencement, the normal use of the Dwelling, the Furniture and the Appliances; and

(b) any other relevant matters.

3.11. To immediately pay the Landlord or their Authorised Agent, the value of replacement of any furniture or effects lost, damaged or destroyed, or at the option of the Landlord, replace immediately any furniture or effects lost, damaged or destroyed and not to remove or permit to be removed, any furniture or effects from the Dwelling.

3.12. Immediately before handing up possession of the Dwelling on the termination of this Tenancy
to thoroughly clean all cookers, fridge, sanitary apparatus and other appliances and all carpets, floor coverings and furnishings and to deliver up same in a sound and clean condition, fair wear and tear excepted; provided always that breach of this condition shall entitle the Landlord or their Authorised Agent to deduct the cost of cleaning the premises from the Security Deposit.

3.13. To leave the Furniture and Appliances at the end of the tenancy in the same places in which they were positioned at the commencement of the Tenancy.

3.14. To allow the Landlord or their Authorised Agent access to the Dwelling at reasonable intervals and at a date and time agreed in advance with the Tenant, for the purpose of:

(a) Inspecting the Dwelling;

(b) Carrying out any works or repairs which are the responsibility of the Landlord;

(c) Erecting or fixing a notice on the outside of the Dwelling for the purposes of obtaining planning permission in the manner prescribed by law and for all purposes incidental to complying with the Planning Acts in force;

(d) Erecting a for sale or let notice on the exterior of the Dwelling and to enter with not more than two other persons to view the Dwelling (this right to be exercised only in the last four weeks of the Tenancy or in the four weeks preceding such sale);

(e) Inspecting, repairing or cleaning neighbouring property, or any sewers, drains, pipes, wires or cables serving neighbouring property

3.15. Without prejudice to condition 3.13, the Tenant will permit the Landlord to inspect the Dwelling on the six month anniversary from the Term Commencement Date and every six months thereafter.

3.16. To facilitate access without the need for prior notice, to the Dwelling by the Landlord or their Authorised Agent in the case of emergency only.

3.17. Not to assign or sublet, part with possession of the Dwelling, or let or allow any other person live at the Dwelling without the Landlord's written consent and to pay to the Landlord any reasonable costs or expenses incurred in deciding this request whether consent is granted or refused.

3.18. To use the Dwelling as a single, private dwelling and not to use it, or any part of it, for any other purpose, nor to allow anyone else to do so.

3.19. Not to receive paying guests, or carry on, or permit to be carried on, any business, trade or profession on or from the Dwelling.

3.20. To ensure that no act or omission by the Tenant, or by any other person or visitor in the Dwelling with the Tenant’s consent, results in a breach of the Landlord’s legal obligations including any planning obligations.

3.21. Not to do, or permit, or suffer to be done in or on the Dwelling, any act or thing which may be a nuisance, damage or annoyance to the Landlord, or to the occupiers of the neighbouring premises, or which may void any policy of insurance in relation to the Dwelling or cause the premiums to increase.

3.22. The Tenant shall put in place and maintain full and adequate insurance cover in respect of the Tenant's contents on or in the Dwelling, and all persons in the Dwelling with the Tenant's consent, and shall indemnity the Landlord from all claims whatsoever in respect of loss, damage or injury to such property or persons.

3.23. Not to keep any animals or birds, or any living creature in the Dwelling without the Landlord's written consent (which consent will be in line with the Pet Policy Agreement). Such consent if granted, to be revocable at will by the Landlord or his Authorised Agent.

3.24. To keep the balconies neat and tidy.

3.25. To compensate the landlord or the landlord's agent if glass in doors and windows are damaged in the Dwelling during the Term.

3.26. Not to Alter, change or install any locks on any doors or windows in or about the Dwelling, or have any additional keys made for any locks without the prior written consent of the Landlord or his Authorised Agent.

3.27. Not to use, nor allow others to use, the Dwelling, or any part of it, for activities which are dangerous, offensive, noxious, noisome, illegal, or which are or may become a nuisance or annoyance to the Landlord or the owner or occupier of any neighbouring property or which are in breach of any obligations with the management company (if applicable).

3.28. Not to behave within the Dwelling, or in the vicinity of it, in a way that is Anti-Social, nor to allow anyone else to do so.

3.29. To comply, in the case of a managed estate, with the rules and regulations of the management company of the estate insofar as they pertain to the conduct by act or omission of the Tenant.

3.30. To comply with the house rules contained in the Forth Schedule hereto which are in place in respect of the estate insofar as they pertain to the conduct by act or omission of the Tenant.

3.31. To pay and compensate the Landlord fully for any costs, expense, loss or damage incurred or suffered by the Landlord as a consequence of any breach of this Tenancy on the part of the Tenant and to indemnify the Landlord from and against all actions, claims and liabilities in that respect.

3.32. To pay and compensate the Landlord fully for any cost and/or expense incurred in the preparation and service of notice and of any proceedings under the Landlord and Tenant Law Amendment Act Ireland 1860 and the Conveyancing Act 1881.

3.33. To notify the Landlord, or the Authorised Agent, promptly of any defect or damage that arises in the Dwelling or the Furniture and Appliances which the Landlord is obliged to repair and to allow the Landlord or an Authorised Agent access to the Dwelling in order to replace or carry out the required repairs subject to the Landlord leaving the Dwelling in the condition it was in upon the Landlord entering the Dwelling.

3.34. To notify the Landlord, or the Authorised Agent, promptly in writing, of any disrepair, damage or defect in the Dwelling, or of any event which causes damage to the Dwelling, or which may give rise to a claim under the insurance of the Dwelling, or of any breakdown of appliances. Failure to do so may result in the Tenant being liable for any subsequent damage.

3.35. Not to glue, stick or otherwise fix anything whatsoever to the exterior or interior walls, doors, windows, floors or other surfaces of the Dwelling without the Landlord's written consent.

3.36. Where the Landlord's interest is derived from another lease ("The Head Lease" in the case of apartment blocks or town-house developments) then it is agreed that the Tenant will observe the rules and other restrictions in the Head Lease applicable to the Dwelling, as well as any
other rules and regulations as may appear in the Special Conditions in the First Schedule to this Agreement.

3.37. To keep the hall, passages and staircase (if any) leading to the Dwelling, and drains, free from obstruction.

3.38. Not to introduce into the Dwelling any portable heaters fired by liquid or bottled gas without the Landlord's prior written consent.

3.39. That the Tenant shall be responsible for testing all smoke detectors (if any) fitted in the Dwelling on a regular basis and replace the batteries as necessary.

3.40. To pay the Stamp Duty charged on the original and counterpart of this Agreement, if any.

3.41. Not to hang any washing out of the windows of the Dwelling and to have all internal windows cleaned at least 4 times a year.

3.42. To give to the Landlord promptly or their Authorised Agent, a copy of any notice received concerning the Dwelling.

3.43. Not to smoke in the Dwelling.

3.44. To take all reasonable precautions and to follow the guidelines as contained in the Sixth Schedule hereto to ensure the Dwelling is properly ventilated at all times.

3.45. The Tenant covenants and agrees not to remove, alter, or tamper with the shower or bath drains in any manner. Should the Tenant violate this covenant, the Tenant shall be fully responsible for all costs associated with the repair, replacement, or restoration of the shower or bath drains to their original condition. Additionally, the Tenant shall be liable for any damages caused to adjoining apartments as a result of such actions. All costs and damages must be paid by the Tenant within 30 days of receiving the respective invoices.

4. Landlord Covenants

4.1. Subject to the payment of Rent and the Tenant observing the terms of this agreement the Tenant shall enjoy quiet peaceful and exclusive occupation of the Dwelling.

4.2. The Landlord will return to the Tenant any Rent payable for any period during which the Dwelling may have been rendered uninhabitable by fire or any other risk which the Landlord has insured against.

4.3. All necessary consents have been obtained to let the Dwelling.

4.4. To keep the Dwelling in a Proper State of Structural Repair and carry out all other repairs as the Landlord is obliged to do under this Tenancy Agreement or the 2004 Act (as amended).

4.5. To maintain a policy of insurance in respect of the structure of the Dwelling as required by the Acts and the Landlord's Furniture and Appliances only, as specified in the Second Schedule hereto.

4.6. To make good or have made good any damage caused to the Dwelling, the Furniture or the Appliances by any person allowed access by the Landlord.

4.7. To pay promptly to the Tenant at the end of the Tenancy any Security Deposit that he or she has paid except any portion that the Landlord is entitled to retain, to cover:

(a) any arrears of Rent; and

(b) any breach by the Tenant of Clauses 3.9 and 3.10 and the costs incurred by the Landlord in making good any such breach.

4.8. Where the Dwelling is part of an apartment complex, or regulated by a management company to forward on the Tenant's behalf any complaints that the Tenant may have in the management of the development to the landlord's authorised agent and to furnish the Tenant with a copy of any response from the landlord's authorised agent and/or the statement from the landlord's authorised agent as to the steps they will take to rectify the matter to which the complaint relates.

4.9. To register this Agreement with the Residential Tenancies Board within the timeframes prescribed by the Acts.

5. Both Parties Agree

5.1. Termination or continuation of this Agreement by the Landlord or Tenant may only be made under the provisions of the Acts.

5.2. Any notice to be served or given may be served on or given to the Landlord or the Tenant in one of the following ways:

(a) by delivering it to the Landlord/Tenant personally;

(b) by leaving it at the address at which the Landlord/Tenant ordinarily resides;

(c) by sending it by post in a prepaid letter to the address at which the Landlord/Tenant ordinarily resides which in

the case of the Tenant shall be presumed to be the address of the Dwelling unless a different address is notified in writing to the Landlord or their Authorised Agent

(d) If the Landlord resides outside the State, then notices to the Landlord shall be served if sent by ordinary post addressed to that Authorised Agent at his address as notified by the Landlord to the Tenant.

(e) In the case of the Landlord by adopting any of the foregoing methods to apply to the Landlord's Authorised Agent.

5.3. The Landlord agrees that access to a preferred broadband and cable TV package will be provided to the Tenant. If the Tenant intends to upgrade the preferred package they will do so at their own expense.

5.4. The Tenant shall pay its equal share of the charges billed by Virgin Media or any alternative provider the Landlord may appoint (the "WIFI Provider")(the "WIFI Costs") PROVIDED HOWEVER that the Landlord agrees to pay the WIFI Costs in respect of the Dwelling billed by the WIFI Provider until 01/05/2027. The benefit of this agreement is personal to the Tenant named in this Agreement and may not be assigned.

5.5. In the event that the Tenant fails to discharge the Rent or the Wifi Costs in accordance with the terms of this Agreement at any stage within the first three years of the Term, the Landlord shall at its absolute discretion be entitled to disconnect the Wi-Fi and cable from the Dwelling.

5.6. The Dwelling is let together with the Special Conditions (if any) listed on the First Schedule attached to this Agreement.

5.7. That the information required under the Housing (Rent Books) Regulations 1993 made under the Housing (Miscellaneous Provisions) Act 1992 is set out in the Third Schedule and that this agreement constitutes the Rent Book for the purposes of these regulations.

5.8. This is a fixed term tenancy and termination by either party must be in accordance with the terms of the Acts. This tenancy may not be terminated unless there has been a breach of obligations by the Landlord or the Tenant. If the Tenant intends to extend his tenancy at the end of the fixed term he must notify the Landlord not later than one month or sooner than three months prior to the expiration of the Term.

5.9. **WHEREVER** more than one person is the Tenant, all their obligations can be enforced against them jointly and severally which may result in each of them individually being liable to the Landlord for the Tenant's obligations under this Agreement, and each is jointly and severally entitled to enforce the Landlord's obligations.

5.10. The Landlord agrees to let and the Tenant agrees to take the Dwelling and Furniture and Appliances for the Term and at the Rent payable in Clause 1, which may change in accordance with the Acts.

6. Main Points to Note - Tenant Information

IMPORTANT: The following Special Provisions, more particularly described in the Tenants Covenants in Clause 3 of the Tenancy, are repeated here for the avoidance of any doubt.

From 1st September 2004, the Residential Tenancies Act, imposes obligations and rights on both the Landlord and Tenant. These obligations and rights form part of this Tenancy and cannot be contracted out of. See www.rtb.ie for further information.

6.1. The Tenant may be evicted if they Behave In A Way That Is Anti-Social, or allow such behaviour within the Dwelling.

6.2. The Tenant is responsible for the payment of Rent. If there is an agreed Fixed Term, then the Tenant is responsible for the payment of Rent for the entire agreed term. The Tenant shall not be entitled to use the Security Deposit as the final months rent.

6.3. Any damage to Fixtures and Fittings or breakdown of appliances must be reported immediately to the Landlord or Authorised Agent.

6.4. The Tenant shall pay Utilities (save for those provided by the Landlord in accordance with clauses 5.3 and 5.4 of this Agreement) and Public Authority Charges levied on the Dwelling.

6.5. The Tenant shall not carry out in the Dwelling any profession or business whatsoever whether for gain or otherwise. Should the Tenant contravene this regulation, this Tenancy shall terminate immediately, but without prejudice to any antecedent rights of the Landlord.

6.6. The Tenant agrees to insure under separate cover all the Tenants property and Tenants liability to the public.

6.7. The Tenant agrees to abide by the rules and regulations of and any notices issued by the management company or managing agents in charge of the development or any common area serving the Dwelling.

6.8. The Tenant agrees, subject to reasonable notice and by prior appointment, to permit the Landlord or Authorised Agent to enter upon the Dwelling at regular intervals throughout this Tenancy for the purpose of inspecting the premises.

6.9. Within one month prior to the termination of this tenancy, the Tenant agrees to permit the Landlord or his Agent to enter upon the Dwelling for the purpose of showing it to prospective tenants, at any reasonable time and by prior appointment.

6.10. The Tenant hereby agrees upon signing this Agreement that the Dwelling is being handed over in good and clean condition throughout and that the Dwelling be handed back in the same condition, fair wear and tear excepted.

6.11. Immediately prior to the termination of this tenancy, the Tenant agrees to thoroughly clean the cooker, fridge, sanitary apparatus and other appliances, and all carpets, curtains, floor coverings, furnishings and windows of the Dwelling and acknowledges that in the event that the Dwelling is not handed back in perfectly clean and tidy condition, the Landlord shall be entitled to deduct the cost of cleaning the Dwelling from the Security Deposit.

6.12. Punctual payment without prior demand and in the manner specified shall constitute the essence of this Tenancy.

6.13. If the Tenant is unsure of his/her obligations under this Agreement, then he/she is advised to take legal advice before signing.

7. Data Protection

7.1. The Tenant's personal data will be processed in accordance with Hali's Privacy Policy, which has been provided to the Tenant in advance of entering into this Agreement. The Hali Privacy Policy is subject to change and the most up to date version is available on the Hali website or by contacting Hello@hali.ie. By entering into this Agreement, the Tenant acknowledges that he/she has received, read and understands the Privacy Policy.

First Schedule

SPECIAL CONDITIONS

1. It is agreed that the Landlord or their agents will be allowed to inspect the Dwelling at regular intervals throughout the term, with the first inspection taking place 6 (six) months after the Term Commencement Date subject to the provision of advance notice (a minimum of 24 hours notice will be given) for each inspection. The purpose of this is to verify that the Dwelling is being kept in good condition. There will be photos taken at the time of inspection.

2. The Dwelling has been professionally cleaned prior to handing over the keys to the Tenant and the Tenant in return, commits to having the full house professionally cleaned at the time of your move out. If required you must be able to provide the Landlord with an invoice to show this has been done. In turn, if the Tenant requires proof of the professional clean carried out before your move in, the Landlord can provide the Tenant with an invoice by request. Please be aware that if the Dwelling is not professionally cleaned, the Landlord reserves the right to deduct the cost from the Security Deposit.

3. The Tenant hereby agrees upon signing this Agreement that there will be no smoking allowed in the Dwelling. Failure to adhere to this may result in the Tenant's Security Deposit being retained by the Landlord in accordance with the Acts.

4. The Tenant is responsible to ensure that they are signed up to Irish Water for their water supply during the term of this Agreement. The Tenant must also ensure that the accounts are closed when the Tenant vacates the Dwelling. Television, internet (other than the Wi-Fi provided by the Landlord) and phone accounts are entirely the choice of the Tenant. If the Tenant opens any of these accounts during the term of this Agreement the Tenant must also close the accounts when they vacate.

5. The Tenant hereby agrees upon signing this Agreement that where a Tenant has to leave the Dwelling during the term of this Agreement, the Tenant must inform the Landlord or the Authorised Agent in writing of their intention to leave. If the Tenant is replacing themselves with a new Tenant (with the consent of the Landlord), they must look to find a suitable tenant and provide the Landlord or the Authorised Agent with all the prospective tenants details and references before any agreement is made to rent to them. The Landlord or Authorised Agent will check the references and subject to successful reference checks, the Landlord or the Authorised Agent will make the decision to allow this person become part of this tenancy and reside at the Dwelling or not.

6. The Tenant will be given an option to avail of a car parking space ("Designated Space") in a car park designated by the Landlord from time to time ("Car Park") at a cost of €75.00 per month, which cost is subject to review by the Landlord at the end of the Term (the "Car Parking Charge"). The Car Park will be managed by a nominated third-party company and the monthly payment will be made from the Tenant to the Landlord, or their Authorised Agent, on the Rent Payment Date. Should the Tenant wish to avail of the Designated Space, the following provisions shall apply:

    1. not to litter or deposit rubbish on the Designated Space and to leave the same in a clean and tidy condition and free of the Tenant's furniture, equipment, goods and chattels;

    2. not to do on or in the Designated Space anything which is illegal;

    3. not to use the Designated Space in such a way as to cause any nuisance, damage, disturbance, annoyance, inconvenience or interference to the Landlord or the other owners and occupiers of the Car Park and/or any adjoining property;

    4. not to wash or clean or repair any vehicle whilst in the Designated Space;

    5. not to use the Designated Space in such a manner as will interfere with the free entry and exit of other users of the Car Park and each vehicle shall be parked within the confines of a single parking space;

    6. not store in any vehicle which may be parked in the Designated Space any dangerous or offensive articles or anything unduly inflammable save petrol in the tank or tanks in a vehicle;

    7. to keep the Designated Space in good order and condition and not in any way to damage the Designated Space;

    8. not to block or interfere with or damage the roadways or circulation areas leading to the Designated Space;

    9. not to display any advertisement, signs or notices at the Designated Space;

    10. to facilitate the Landlord to repair and maintain the Designated Space whenever necessary notwithstanding any inconvenience caused to the Tenant in this regard

    11. not to knowingly do any act or matter or thing which would or might constitute a breach of any statutory requirement affecting the Designated Space or which would or might invalidate in whole or in part any insurance effected in respect of the Car Park from time to time;

    12. as soon as practicable following the execution of this Agreement but in any event prior to the use of the Designated Space to give to the Landlord, their Authorised Agent, and to the nominated third-party company details of the registration number(s) of the motor vehicle(s) which will be parked on the Designated Space and the name(s) of the owner(s) and driver(s) or such motor vehicle(s) and to notify the Landlord prior to any change in such details;

    13. to liaise with the nominated third-party company appointed by the Landlord with regard to the use of the Designated Space by visitor(s) of the Tenants provided that the Landlord shall not be responsible for any inconvenience caused if the Designated Space is unsuitable for use by the said visitor(s);

    14. to indemnify the Landlord and keep the Landlord indemnified from and against all losses, claims, demands, actions, proceedings, damages, costs or expenses or other liability arising from the breach of any of the Tenant's undertakings contained in this special condition 6 or the use of the Designated Space by the Tenant or any party under its control in any manner not consistent with the terms of this Agreement;

    15. to observe such rules and regulations as the Landlord or its agents may make in relation to the management and operation of the Car Park (including the use of the Designated Space) and which the Landlord or its agents (as appropriate) shall notify to the Tenant from time to time; and

    16. to return to the Landlord, their Authorised Agent and / or the third-party company any keys or control cards to any security barriers or gates to the Car Park at either the termination of this Agreement or at the termination of the Tenant's option to avail of the Designated Space.

    17. To ensure the vehicle is taxed and insured while parked in the Car Park.

7. WELL Building Certification

Cherrywood is WELL certified. The tenant agrees to conform to the following special conditions in order to comply with the developments WELL Community certification:

7.1 Hazardous Waste Management

We will provide all tenants with information on deposit locations and hours of operation governing the management of the following hazardous wastes, as defined per regulations:

2. Batteries (e.g., nickel cadmium)
3. Pesticides that are either recalled or collected in waste pesticide collection programs.
4. Mercury-containing equipment.
5. Lamps.

7.2 Waste Reduction

The tenant shall comply with the requirements of the Site Waste Operational Management Plan and the requirements below:

(a) Waste or source reduction (including prevention, minimization and reuse)

(b) Recycling and materials recovery.

(c) Disposal

7.3 Provide details of any hazardous materials stored in the Dwelling

Hazardous substances are not permitted to be stored in the Dwelling however: in the event that a hazardous material is required for personal medical purposes or some such similar essential reason the tenant agrees to inform the landlord immediately and to comply with the Landlords Hazardous Waste Management Plan.

7.4 WELL Community

The landlord in its compliance with WELL community certification will from time to time promote WELL community initiatives in line with its commitment to sustainability and WELL Community Certifications. Such initiatives may include:

(a) Green and Sustainability awareness campaigns

(b) Invitation to be part of a Tenant Green / WELL community council

(c) Special events promoting sustainability

The tenant is encouraged to participate in any such campaigns and not to behave in any manner which jeopardies the landlords certifications.

The tenant agrees to share metering data (energy, water, district heating and waste) and provide if requested, detailed invoices for utilities and waste reports.

The tenant agrees to cooperate and participate in obtaining a sustainability certificate and not do anything in the building that would jeopardize the buildings sustainability certification.

The tenant agrees to cooperate and participate in technical equipment and installations that are deemed to provide an energy saving.

Second Schedule

FURNITURE, APPLIANCES AND CONTENTS

In accordance with the Housing Miscellaneous Provisions Act, 2009, the Housing (Standards for Rented Houses) (Amended) Regulations 2009 and the Housing (Standards for Rented Houses) Regulations 2008 the Landlord must provide the following:

1. A fire blanket and either a mains wired smoke alarm or at least two ten year self-contained battery operated smoke alarms
2. Each self-contained house and multi-unit building should contain a mains wired smoke alarm and fire blanket and emergency evacuation plans
3. Emergency lighting shall be provided in all common areas within a multi-unit building
4. Four ring hob, oven and grill
5. Cooker hood or extractor fan
6. Fridge and freezer or a fridge/freezer
7. Microwave oven
8. Sink and fixed bath or shower with piped supply of cold water
9. Facility for the piped supply of hot water
10. Suitable and adequate number of kitchen presses for food storage purposes
11. Washing machine or access to a communal washing machine facility within the curtilage of the building
12. A dryer if the dwelling does not contain a garden or yard for the exclusive use of that dwelling.

From 1 July 2017, the Housing (Standards for Rented Houses) Regulations 2017 Regulations will amend this list as follows:

1. A suitable self-contained fire detection and alarm system as well as a suitable located fire blanket;
2. Each self-contained house in a multi-unit building must contain a suitable fire detection and alarm system and an emergency evacuation plan;
3. A suitable fire detection and alarm system in common areas of a multi-unit building and Emergency lighting in all common areas within a multi-unit building that complies with standards produced by the National Standards Authority of Ireland for Fire Detection and Fire Alarm Systems in Buildings and For Emergency lighting.
4. 4 ring hob, oven and grill
5. Cooker hood or extractor fan
6. Fridge and freezer or a fridge/freezer
7. Microwave oven
8. Sink and fixed bath or shower with piped supply of cold water
9. Facility for the piped supply of hot water
10. Suitable and adequate number of kitchen presses for food storage purposes
11. Washing machine or access to a communal washing machine facility within the curtilage of the building
12. A dryer or access to a communal dryer if the dwelling does not contain a garden or yard for the exclusive use of that dwelling.

ADDITIONAL INVENTORY OF CONTENTS IN DWELLING

Studio

Livingroom/Dining/Kitchen

1	2 Seater Sofa
1	Arm Chair**
1	Coffee Table
1	Pouf
1	Rug
1	TV Unit
1	Floor Lamp
2	Artwork
1	Dining table
2	Dining Chairs
1	Microwave
1	Oven
1	Ceramic Hob and extractor fan
1	Fridge/Freezer
1	Integrated Waste Bin
1	Washing Machine
1	Dryer
1	Window Blind
1	Fire Blanket

Bedroom

1	Rectangular Mirror
1	Light Shade
1	5ft Mattress
1	5ft Divan Base
1	Mattress Protector
1	Headboard
2	Bedside Lockers
2	Bedside Lamps
1	Window Blind

1 Bed Apartment

Livingroom/Dining/Kitchen

1	2.5 Seater Sofa
1	Arm Chair
1	Coffee Table
1	Pouf
1	Rug
1	Side Table
1	TV Unit
1	Floor Lamp
2	Artwork
1	Dining table
4	Dining Chairs
1	Microwave
1	Oven
1	Ceramic Hob and extractor fan
1	Fridge/Freezer
1	Integrated Waste Bin
1	Washing Machine
1	Dryer
1	Window Blind
1	Fire Blanket

Bedroom

1	Rectangular Mirror
1	Light Shade
1	5ft Mattress
1	5ft Divan Base
1	Headboard
2	Bedside Lockers
2	Bedside Lamps
1	Window Blind

2 Bed Apartment

3 Bed Apartment

Livingroom/Dining/Kitchen

1	3 Seater Sofa
1	Arm Chair
1	Coffee Table
1	Pouf
1	Rug
1	Side Table*
1	TV Unit
1	Floor Lamp
2	Artwork
1	Dining table
4	Dining Chairs
1	Microwave
1	Dishwasher
1	Oven
1	Ceramic Hob and extractor fan
1	Fridge/Freezer
1	Integrated Waste Bin
1	Washing Machine
1	Dryer
1	Window Blind
1	Fire Blanket

Livingroom/Dining/Kitchen

1	Fire Blanket
1	3 Seater Sofa or 2.5 Seater Sofa*
1	Arm Chair
1	Coffee Table
1	Pouf
1	Rug
1	Side Table*
1	TV Unit
1	Floor Lamp
2	Artwork
1	Dining table
6	Dining Chairs
1	Microwave
1	Dishwasher
1	Oven
1	Ceramic Hob and extractor fan
1	Fridge/Freezer
1	Integrated Waste Bin
1	Washing Machine
1	Dryer
1	Round Mirror
1	Tall Unit in specific apartment layouts
1	Window Blind

Bedroom 1 & 2 (each contain below items)

1	Rectangular Mirror
1	Light Shade
1	5ft Mattress
1	5ft Divan Base
1	Headboard
2	Bedside Lockers
2	Bedside Lamps
1	Window Blind

Bedroom 1, 2& 3 (each contain below items)

1	Rectangular Mirror
1	Light Shade
1	5ft Mattress
1	5ft Divan Base
1	Headboard
2	Bedside Lockers
2	Bedside Lamps
1	Window Blind

*Depending on size of apartment, it may also include extra window blinds, a tall unit, a round mirror and desk in Livingroom as part of your furniture schedule.
**Armchairs are not included in Studio apartments located in the Barrington Building.

Third Schedule

STATEMENT OF INFORMATION REQUIRED UNDER THE HOUSING (RENT BOOKS) (AMENDMENT) REGULATIONS 2010

1. This statement of information is in accordance with the Housing (Rent Books) (Amendment) Regulations 2010. It does not purport to be a legal interpretation.

2. The tenant of a house is entitled to enjoy peaceable and exclusive occupation of the house provided that the tenant complies with the obligations to pay rent and observes the other terms of this Agreement.

3. Notice of termination of a tenancy must be in writing and must be made in accordance with the provisions of the Acts.

4. The landlord is prohibited from impounding the goods of a tenant to secure recovery of rent unpaid.

5. The Landlord is obliged to provide a tenant with a rent book for use throughout the term of the tenancy. The Landlord must enter particulars relating to the tenancy in the rent book, and, in the case of a new tenancy, complete the inventory of furnishings and appliances supplied with the house for the tenant's exclusive use.

6. The Landlord is obliged to keep the particulars in the rent book up to date. Where the rent or any other amount due to the Landlord under the tenancy is handed in person by the tenant, or by any person acting for the tenant, to the Landlord, the Landlord must, on receipt, record the payments in the rent book or acknowledge it by way of receipt. Payments not handed over directly, for example, those made by standing order or direct debit, must, not more than three months after receipt, either be recorded by the Landlord in the rent book or acknowledged by way of statement by the Landlord to the tenant.

7. The tenant is obliged to make the rent book available to the Landlord to enable the Landlord to keep the particulars in it up to date.

8. From the 1st February 2009, the Housing (Standards for Rented Houses) Regulations 2008 come into operation. These regulations apply immediately and in full to properties let for the first time after this date. Properties that have been let between 1st September 2004 and 31st January 2009 are deemed to be "existing tenancies" for the purposes of these Regulations. Such tenancies are partly exempt from the Regulations until the 1st February 2013 during which time the Housing (Standards for Rented Houses) 1993 continue to apply. Neither the 1993 nor the 2008 Regulations apply to houses let on a temporary or holiday basis, local authority demountable dwellings and communal type accommodation provided by the Health Service Executive and certain approved non-profit or voluntary bodies. The standards relate to structural condition, heating facilities, food preparation and storage, laundry, ventilation, lighting, fire safety, refuse facilities, electricity and gas.

9. The duties of a Landlord referred to in paragraphs 6 to 8 above may be carried out on the Landlord's behalf by a duly appointed Agent. Any reference in a statement to "house" includes a flat or maisonette.

10. Copies of the Housing (Rent Books) Regulations 1993 and Amendments and the Housing (Standards for Rented Houses) Regulations 1993, 2008 may be purchased from the Government Publications Sale Office, Sun Alliance House, Molesworth Street, Dublin 2, or from the Housing Authority.

11. Responsibility for the enforcement of the law relating to rent books and standards rests with the housing authority for the area in which the house is located. The name, address and telephone number of the relevant housing authority are as follows:

    Dun Laoghaire Rathdown County Council,
    2 Marine Rd,
    Dún Laoghaire,
    Dublin,
    A96 K6C9

Forth Schedule

HOUSE RULES
Development: Cherrywood Town Centre, Cherrywood, Dublin 18.

1. Any noise that may constitute an annoyance such as radio, television etc should be kept to a minimum so as not to interfere with the quiet enjoyment of the other residents in the Development. There shall be no noise emitting from your apartment between 11pm and 8am.

2. Smoking is prohibited in all areas of the Development. For the avoidance of any doubt, this includes in the apartments, the Community facilities, on the balconies and anywhere inside the property boundary.

3. No alterations shall be carried out in any part of the Development by residents. This includes, but is not limited to, the hanging of pictures. All walls within the Development are fire rated and any drilling or hammering into any of the walls creates a fire safety risk and is therefore strictly prohibited. Any resident found to have broken this rule will be required to pay for the remediation cost of the wall and may be subject to termination of your tenancy.

4. No items to be left in any common area, including balconies, landings, stairwells and car parks.

5. The use of balconies for hanging washing, barbequing, or storing of other items is strictly prohibited.

6. Placement of drawings, flags, signboards, plates or placards of any kind on or in a window or on the exterior of an apartment so as to be visible from the outside is prohibited.

7. Every effort should be made to keep common areas clean and tidy, please contact the community staff if you have any concerns over the condition of areas.

8. If a resident sees any suspicious activity anywhere in the development, they should contact the community staff/security or in the event of a very serious concern immediately contact emergency services by dialing 999 or 112.

9. Car parking without a valid permit is not prohibited, clamping will be in operation and fines will be payable for the release of clamps. Please note that HALI does not operate the clamping and cannot refund fines. Car Parking charges are subject to change after 12 months.

10. The Apartments shall not be used to carry out any trade, profession or business whatsoever, whether for gain or otherwise.

11. Pets of any kind must be kept in accordance with the Pet Policy Agreement which must be signed and counter signed by HALI prior to any pet coming into the Development. Please note that pets are not allowed in any part of the Community amenities and any violations of this or of the Pet Policy Agreement generally will constitute anti-social behaviour under your lease agreement. Please bear in mind, some people can be afraid of animals – please respect your fellow residents and ensure your pet does not cause any inconvenience or concern to another resident.

12. Lifts are for passengers use only - weight limits must not be exceeded under any circumstances.

13. Residents shall not place refuse anywhere other than the bin stores, all refuse should be in refuse sacks and securely tied. Please try to keep refuse to a minimum and all residents have a responsibility to recycle where possible. There is no charge to residents to use the waste disposal facilities, however, the bin stores are covered by CCTV and accessed with a digital fob. There are logs kept by HALI to show entry/exit times for the bin store areas to ensure that only residents will be able to access the bin store areas.

14. Satellite dishes are not permitted to be installed. The TV and internet package included are the only permitted TV and internet services, it is strictly prohibited to interfere with any of the equipment on site which provides internet or TV and any violation of this will be considered a breach of the lease conditions and may result in termination of your tenancy.

15. Community facilities are open 6am-10pm Monday-Thursday and 6am-11pm Friday-Sunday to residents. Non-residents are not permitted to use the gym. Management staff are on site from 9am – 6pm Monday to Friday. The house rules also apply to the Community facilities which are shared by all residents. When using the Community facilities, you should ensure you leave them as you found it. Please note that all areas of the Community amenities are covered by CCTV and any breaches of the house rules by residents will be considered a breach under your lease and may result in termination of your tenancy.

16. The Tenant hereby indemnifies the Landlord against all and any expenses, costs, claims, demands, damages and other liabilities whatsoever in respect of injury or death of any person (to include the Tenant, it's undertenants, servants, agents, licensees or invitees or any person under their control) or damage to any property howsoever arising directly or indirectly while on the Demised Premises or when utilising the Community facilities to include the gym and car park.

17. HALI shall have final say on all rules and can vary these rules without prior notice.

Fifth Schedule

VENTILATION POLICY

Proper Ventilation:

Good ventilation helps to create a healthier environment for you and your family. It works by removing polluted and moisture-rich air found in the home and replaces it with fresh air taken from outside.
Effective ventilation is vital not only because it helps to protect your home's fixtures, fittings and internal structure, it also safeguards the health, comfort and long-term well-being of its occupants.
Ventilation also helps to minimise or even eliminate the effects of dust mites for those who suffer with asthma and other respiratory problems.

Common Problems

- Moisture in the air can lead to condensation and mould growth. House dust mites flourish in damp conditions, which can lead to asthma and other health issues.
- Everyday odours from cooking, domestic pets, our bodies, toilets, Environmental Tobacco Smoke (ETS), circulate around the home.
- Modern homes are designed to be airtight, creating an almost complete seal, which leads to the internal air being stale, unpleasant and polluted.

What is condensation? Condensation is dampness occurring when air laden with water vapour cools on contact with a cold surface, you notice it when you see your breath on cold days or in the bathroom on mirrors or tile surfaces. Condensation is frequently found near or on windows, cold wall surfaces and in or behind cupboards or wardrobes. Also it often forms on north facing walls.

How to minimise condensation

- Cover boiling pans and turn kettles off after use and use extractor fan.
- In particular, ventilate kitchens and bathrooms when you are using them.
- Prevent the damp air spreading by keeping kitchen and bathroom doors closed when the room is in use.
- Open curtains for at least 4 or 5 hours each day, it allows moisture to get through any window vents.
- Don't block air vents
- Avoid drying clothes on radiators
- Heat your home at low levels for a long time rather than high levels for short periods; this will ensure that fewer cold surfaces form in the home. Heat the home even when there is no one there. Keep background heating on all the time during the winter months.
- If mould starts to grow on walls, clean them with bleach or disinfectant

Signature Page

Landlord:

Name: <<LegalEntity_Name>>

Signature: _____

Date: _____

Tenant(s):

Name(s): <<ALLTENANTLESSEE>>

Signature: _____

Date:

Guarantor(s):

Name: <<Prospect_GuarName1>> <<Prospect_GuarName2>>

Signature:

Date: _____